



DEPARTMENT OF PUBLIC SAFETY

Division of Fire Prevention and Control

FIREFIGHTER AND HAZARDOUS MATERIALS RESPONDERS VOLUNTARY CERTIFICATION PROGRAMS

8 CCR 1507-3

[Editor's Notes follow the text of the rules at the end of this CCR Document.]

SECTION 1 INTRODUCTION AND BACKGROUND INFORMATION

The "Voluntary Certification Program for Fire Fighters" began on June 21, 1979, when House Bill 1243 was signed into law. The general purpose of the certification program is to measure the level of knowledge, skills and abilities possessed by firefighters and first responders and to attest that these individuals meet nationally recognized standards.

The "Hazardous Materials Responder Voluntary Certification Program" was created by HB89- 1223 which was enacted effective July 1, 1989. The general purpose of the certification program is to measure the level of knowledge, skills and abilities possessed by responders to hazardous materials incidents and to attest that these individuals meet nationally recognized standards.

These programs are voluntary, meaning that there is no statutory requirement that firefighters or hazardous materials responders become certified. The certification programs establish a means to judge the proficiency of firefighter and hazardous materials responders, irrespective of their organizational affiliation and regardless of whether they are career or voluntary. These competency-based standards permit evaluation of training programs and promote uniformity in firefighter and hazardous materials responder training.

Colorado Fire Service Training and Certification Advisory Board

Section 24-33.5-1204, C.R.S. creates the Colorado Fire Service Training and Certification Advisory Board, the general purpose of which is to:

- Advise the director on establishing the fire service education and training programs;
- Advise the director on setting minimum standards for training and certification for the programs;
- Advise the director on establishing procedures for determining if firefighters and hazardous materials responders meet these minimum standards; and
- Advise the director on certifying applicants who meet the established minimum standards.

The Colorado Fire Service Training and Certification Advisory Board is comprised of fourteen (14) members, eleven (11) of whom are voting members appointed by the Governor, and represent the major stakeholders associated with firefighting and hazardous materials responder communities.

Fire Service Training Program

The State of Colorado Fire Service Training Program, previously under the supervision of the State Board of Community Colleges, and Occupational Education, was transferred to the Division of Fire Prevention and Control on July 1, 1986.

SECTION 2 PURPOSE AND AUTHORITY FOR ESTABLISHING RULES

- 2.1 The purpose of the Firefighter and Hazardous Materials Responder Certification Programs is to measure the level of knowledge, skills and abilities possessed by firefighters and hazardous materials responders and to attest that these individuals meet nationally recognized standards. These competency-based standards permit evaluation of training programs and promotes uniformity in firefighter and hazardous materials training.
- 2.2 The purpose of these rules is to achieve the following goals and objectives:
 - 2.2.1 Address current firefighting and hazardous materials response principles and practices.
 - 2.2.2 Establish and promote the fire service and hazardous materials response in the State of Colorado as a professional service.
 - 2.2.3 Improve the performance and coordination of fire suppression and prevention activities, and hazardous materials response, through the development of minimum performance standards for all responders.
 - 2.2.4 Develop more competent and reliable fire service and hazardous materials response personnel through the adoption of national professional qualifications standards and minimum training standards.
 - 2.2.5 Establish and maintain valid procedures that measure specific levels of skills, abilities and knowledge consistent with standards approved and adopted by the Colorado Fire Service Training and Certification Advisory Board.
 - 2.2.6 Establish a statewide uniform testing procedure that will ensure all skills evaluated and all examinations conducted are performed and evaluated in a consistent manner for all fire fighters throughout the State of Colorado.
 - 2.2.7 Establish a fire service education and training program setting forth minimum standards for instructors.
 - 2.2.8 2.2.8 Establish and implement a certification program that will ensure complete impartiality and confidentiality and that is designed in such a manner to safeguard against misuse and abuse.
 - 2.2.9 Ensure that all internationally accredited levels of certification are administered with strict adherence to the requirements and recommendations of the International Fire Service Accreditation Congress (IFSAC) and the National Board on Fire Service Professional Qualifications (the ProBoard).
 - 2.2.10 Establish disciplinary procedures for denial, revocation, limitation, or suspension of an individual's firefighter certificate and/or an accredited academy's recognition.
 - 2.2.11 Ensure compliance with Section 24-4-103 (12.5), C.R.S. concerning incorporation by reference requirements.

- 2.3 Authority for the promulgation of these rules is set forth in Sections 24-33.5-1202 through 24-33.5-1209, C.R.S.
- 2.4 All publications, standards, or rules adopted and incorporated by reference in these rules are available for public inspection, copies are available for a reasonable charge, and information regarding obtaining copies is available by contacting the Division of Fire Prevention and Control at 690 Kipling St., Suite 2000, Lakewood, CO 80215, or by telephone at 303-239-4600. The materials incorporated by reference in these rules may also be examined at any state publications depository library. These rules do not include later amendments to or editions of any materials incorporated by reference.
- 2.4.1 Questions, clarification, or interpretation of these rules should be addressed in writing to: Colorado Fire Service Training and Certification Advisory Board, c/o Colorado Division of Fire Prevention and Control.
- 2.5 The Advisory Board, in its discretion, may adopt policies concerning the implementation or interpretation of these rules at any regular or special meeting.
- 2.6 The Division, in its discretion, may adopt policies or guidelines concerning the methods, procedures and processes for administering the certification program.

SECTION 3 DEFINITIONS

The following definitions apply only to these rules and DO NOT in any way apply to the rules, regulations, or procedures of a local fire service unit or organization. All definitions that appear in Section 24-33.5-1202, C.R.S. shall apply to these rules.

- 3.1 **ADVISORY BOARD (BOARD)** - The Colorado Fire Service Training and Certification Advisory Board created pursuant to Section 24-33.5-1204, C.R.S. Also refers to the members appointed by the Governor to serve on the Advisory Board for prescribed terms.
- 3.2 **AERIAL LADDER APPARATUS** – A piece of fire apparatus with a permanently mounted, power operated elevating device, including aerial ladders aerial ladder platforms, telescoping aerial platforms, articulation aerial platforms, and elevating water delivery systems.
- 3.3 **APPLICANT** - A person who has satisfied the requirements to be examined for certification or an entity that applies for recognition as an accredited academy.
- 3.4 **CERTIFIED** - Applicants who have successfully met or exceeded cognitive and psychomotor/process/project behavioral objectives of the Voluntary Certification Program.
- 3.5 **CERTIFIED PROCTOR** - An individual who meets or exceeds the requirements to be certified as a written and/or practical examination proctor.
- 3.6 **CERTIFYING AGENCY** - The Colorado Division of Fire Prevention and Control, Colorado Department of Public Safety.
- 3.7 **CHIEF LEVEL OFFICER RANK** - Chief or chief executive officer of the department; or Chief officer or equivalent who heads a major bureau or division within a fire department or organization; or Chief officer or equivalent who commands multi-company or multi-station operations on the emergency incident scene or who may command a greater alarm incident.
- 3.8 **CLASS** - A single meeting or session devoted to a specific fire service or non-fire service training objective.

- 3.9 **COGNITIVE OBJECTIVE** - Pertinent written questions, lists, or problems relative to the level at which a person is being tested.
- 3.10 **COMPETENCE** - Possessing knowledge, skills and abilities needed to perform indicated objectives satisfactorily.
- 3.11 **CONTINUING EDUCATION** - An instructional program that brings participants' knowledge, skills and abilities up to date when renewing a certification.
- 3.12 **COURSE** - Any grouping of classes, or series of lessons or lectures combined to attain a particular education level or training objective.
- 3.13 **DEMONSTRATE** - To show by actual use. This may be supplemented by or, when actual use is not feasible, replaced by simulation, explanation, illustration, or a combination of these methods.
- 3.14 **DEPARTMENT** - A fire service unit defined in this section.
- 3.15 **DEPARTMENT HEAD** - The chief executive officer of an organization.
- 3.16 **DIRECTOR** - The Director of the Division of Fire Prevention and Control, Department of Public Safety, State of Colorado.
- 3.17 **DIVISION** - The Division of Fire Prevention and Control, Department of Public Safety, State of Colorado.
- 3.18 **EMERGENCY RESPONSE ORGANIZATION** - Any organization, public or private whose services include the rescue response, fire suppression, fire prevention activities and or hazardous materials response.
- 3.19 **EMPLOYEE** - Anyone who may respond to an emergency incident, either career or volunteer, representing the fire service, law enforcement, search and rescue groups, emergency medical services or industry, and governmental agencies.
- 3.20 **EPA** - The United States Environmental Protection Agency.
- 3.21 **FIREFIGHTER** - A member of a fire department unit.
- 3.22 **FIRE DEPARTMENT UNIT** - An organization providing rescue, fire suppression, hazardous materials response, and related activities. The term "Fire Department" shall include any public, governmental, private, industrial, or military organization engaging in this type of activity.
- 3.23 **HAZARDOUS MATERIALS** - For the purpose of these Rules, hazardous material means those substances that, upon release, have the potential of causing harm to people, property, or the environment. This definition includes hazardous materials, hazardous substances and hazardous wastes.
- 3.24 **HAZARDOUS MATERIALS INCIDENT** - A fire involving a hazardous materials, or a release or potential release of a hazardous material that, in the judgment of an emergency response authority, threatens sudden and irreparable harm to the environment or the health and safety of any individual, including those incidents of spilling, dumping or abandonment of a hazardous material, whether or not such spilling, dumping, or abandonment is found to threaten harm, but does not include any discharge of a hazardous materials authorized pursuant to any federal, state, or local law or regulation.

- 3.25 **HAZARDOUS MATERIALS RESPONSE TEAM** - An organized group of hazardous materials technicians that responds to hazardous materials incidents, including those involving the use of Weapons of Mass Destruction (WMD). At the discretion of the team leader, personnel trained in hazardous materials operations may also augment the Hazardous Materials Response Team in the performance of low-risk tasks that do not bring them into contact with hazardous materials or substances, such as decontamination.
- 3.26 **JOB PERFORMANCE REQUIREMENT (JPR)** - Actual use or performance, safely and efficiently accomplished and in accordance with procedures and standards established for the Voluntary Certification Program.
- 3.27 **NATIONAL ACCREDITATION** - Issued to a candidate who has met all of the requirements of the NFPA Standards, and has taken and passed both the written and practical examinations, when required, for an accredited level of certification that meets the requirements of the International Fire Service Accreditation Congress (IFSAC) and the National Board on Fire Service Professional Qualifications (The ProBoard).
- 3.28 **NFPA** - The National Fire Protection Association.
- 3.29 **NON –ACCREDITED** – Certification not officially recognized as meeting the requirements of the NFPA Standards.
- 3.30 **NON-CERTIFIED** - Any applicant who does not possess a valid certification recognized by the Board.
- 3.31 **OSHA** - The Occupational Safety and Health Administration.
- 3.32 **POLICIES** - Formal guidelines promulgated by the Division and/or the Advisory Board concerning the methods, procedures and processes for implementing these rules and administering the certification program.
- 3.33 **PSYCHOMOTOR OBJECTIVE** - Actual use or performance, safely and efficiently accomplished within a specific time limit and in accordance with procedures and standards established for National Accreditation or Firefighters and meets the requirements of the NFPA Standards as its basis.
- 3.33.1 **Psychomotor Skill** – A manipulative skill conducted in real time, directly observed by a proctor, and assessed using a psychomotor skills examination.
- 3.33.2 **Psychomotor Assessment** – A skill completed in real time which cannot be directly observed and is scored using a rubric with questions and expected verbal responses.
- 3.33.3 **Product (project)** – A skill which cannot be directly observed and utilizes a work product created by the candidate scored using a rubric with expected responses. The proctor will evaluate how a candidate completes the task outcome after submission.
- 3.34 **REFRESHER TRAINING** - A course of instruction, condensed over a short period of time, designed to provide training to persons for the purpose of preparing them for renewal of certification.
- 3.35 **SAFELY** - Means to perform the objective without endangering or injuring oneself or others.

SECTION 4 REQUIRED TRAINING/TRAINING CURRICULUM

- 4.1 The department head of each organization shall designate the type and kind of training required. However, all training must meet the NFPA professional qualifications standards.

Explanatory Information: *The department head has the ultimate responsibility to ensure to the citizens of their jurisdiction that the individual is properly trained. The department head also has the responsibility for certifying to the Division that the individual applying for certification at any level, or renewal of certification, is adequately trained and qualified for the requested level of certification. The department head of each organization is responsible for the credibility of the certification program as it relates to the organization. Emergency responses are considered experience – not training.*

- 4.2 Training subjects for the various levels of certification are those listed in the NFPA Standards for Professional Qualifications.
- 4.3 The Advisory Board will consider granting recognition of training curriculum for each level of certification that meets or exceeds the criteria set forth in the NFPA Standards, OSHA and U.S. Environmental Protection Agency (EPA) Regulations as adopted in Section 4 and/or published by the Division and the Board.
- 4.4 The applicant requesting recognition of training curriculum must provide the Advisory Board an outline of the curriculum which includes references to the appropriate standards and/or regulations, and identifies the number of recommended student contact hours, and any other information deemed appropriate by the Board.
- 4.5 The NFPA Standards adopted and incorporated herein as allowed and required by the accredited bodies IFSAC and The ProBoard:
- 4.5.1 NFPA Standard 470, *Hazardous Materials/Weapons of Mass Destruction (WMD) Standard for Responders*, 2022 edition
 - 4.5.2 NFPA 1000 – *Standard for Fire Service Professional Qualifications Accreditation and Certification Systems*, 2022 edition
 - 4.5.3 NFPA 1001 – *Standard for Fire Fighter Professional Qualifications*, 2019 edition
 - 4.5.4 NFPA 1002 – *Standard for Fire Apparatus Driver/Operator Professional Qualifications*, 2017 edition
 - 4.5.5 NFPA 1003 – *Standard for Airport Fire Fighter Professional Qualifications*, 2019 edition
 - 4.5.6 NFPA 1006 – *Standard for Technical Rescue Personnel Professional Qualifications*, 2013 edition
 - 4.5.7 NFPA 1021 – *Standard for Fire Officer Professional Qualifications*, 2020 edition
 - 4.5.8 NFPA 1030 *Standard for Professional Qualifications for Fire Prevention Program Positions*, 2024 edition
 - 4.5.9 NFPA 1041 - *Standard for Fire and Emergency Services Instructor Professional Qualifications*, 2019 edition
 - 4.5.10 NFPA 1403 – *Standard on Live Fire Training Evolutions*, 2018 edition

- 4.5.11 NFPA 1521 – *Standard for Fire Department Safety Officer Professional Qualifications*, 2020 edition
- 4.6 Copies of the NFPA publications adopted and incorporated by reference herein are available by ordering from the National Fire Protection Association, 1 Batterymarch Park, Quincy, MA 02169. (NFPA.org)
- 4.7 The federal regulations adopted and incorporated herein by reference, are as follows:
 - 4.7.1 Code of Federal Regulations; Title 49, part 171.8, 1993. U.S. Department of Transportation.
 - 4.7.2 Code of Federal Regulations; Title 29, part 1910, Hazardous Waste Operations and Emergency Response, Final Rule, printed in the Federal Register. OSHA
 - 4.7.3 Code of Federal Regulations; Title 40, part 311, Worker Protection Standards for Hazardous Waste Operations and Emergency Response, Final Rule, printed in the Federal Register. U.S. EPA
- 4.8 Copies of the federal regulations adopted and incorporated by reference herein are available in electronic format and may be ordered in print form from the U.S. Government Bookstore.

SECTION 5 GENERAL REQUIREMENTS FOR CERTIFICATION

- 5.1 Anyone choosing to participate in the Voluntary Certification Program will adhere to all rules, policies and procedures set forth and adopted by the Advisory Board and the Division.
- 5.2 By completing the information in the Division online records management system, the department head or designee is certifying that the requirements have been met for that level of certification and that department records will exist to support the training. The Advisory Board maintains the right to assign a Board member or designee to observe the job performance requirements of applicants and to review the applicants' training records.
- 5.3 The organization requesting certification must submit applications and fees a minimum of fourteen (14) days prior to the scheduled examination date.
- 5.4 Certification will be awarded for a five (5) year period, unless earlier revoked.
- 5.5 Certificates will be issued with the expiration dates of January 1 or July 1, depending on when the applicant is certified.
- 5.6 Certifications Levels available through the Colorado Division of Fire Prevention and Control:
 - (a) Fire Fighter I
 - (b) Fire Fighter II
 - (c) Fire Officer I
 - (d) Fire Officer II
 - (e) Fire Officer III
 - (f) Fire and Emergency Services Instructor I

- (g) Fire and Emergency Services Instructor II
- (h) Fire and Emergency Services Instructor III
- (i) Driver Operator Tender
- (j) Driver Operator
- (k) Driver Operator Pumper
- (l) Driver Operator Aerial
- (m) Youth Fire Setting Intervention Specialist I
- (n) Airport Rescue Firefighter
- (o) Fire and Life Safety Educator I
- (p) Fire and Life Safety Educator II
- (q) Hazardous Materials – Awareness
- (r) Hazardous Materials – Awareness/ Operations
- (s) Hazardous Materials Technician
- (t) Hazardous Materials Instructor
- (u) Incident Safety Officer
- (v) Live Fire Training and Fixed Facility Instructor
- (w) Technical Rescue Personnel
- (x) Fire Inspector I
- (y) Written and/or Practical Proctor

SECTION 6 SPECIAL CERTIFICATES AND AWARDS

- 6.1 Certificates and awards, including “Honorary Certification,” may be presented by the Board for the purpose of raising the level of awareness of the Voluntary Certification Program and to recognize and otherwise foster cooperation among other agencies, groups, organizations, jurisdictions, and individuals.

SECTION 7 PROCEEDINGS PURSUANT TO DENIAL, REVOCATION, SUSPENSION, ANNULMENT, LIMITATION OR MODIFICATION OF CERTIFICATION

- 7.1 Denial of Certification. The Division, in accordance with the Administrative Procedure Act, Section 24-4-101, et seq., C.R.S., as amended, may deny any certificate or refuse to renew a certificate to any applicant for, but not limited to, the following reasons:
- 7.1.1 Failure to meet requirements specified in these rules pertaining to the Issuance of Certificates and the renewal of certification.

- 7.1.2 Any conduct as described in Section 7.2.2 pertaining to good cause for disciplinary action.
- 7.1.3 Fraud, misrepresentation, or deception in applying for, or renewing certification, or in taking any written or practical certification examination.
- 7.1.4 Aiding and abetting another person in procuring certification for any person who is not eligible for certification.
- 7.1.5 Creating a disturbance during a state practical skills evaluation or a state written examination, or conducting themselves in a manner that disrupts other persons taking the examinations or prevents the examination proctor from conducting the examination.
- 7.2 Revocation, Suspension, or Limitation of Certification
 - 7.2.1 Any certification issued by the Division may be suspended, summarily suspended, revoked, or limited for good cause in accordance with the Administrative Procedure Act, Section 24-4-101 et seq., C.R.S., as amended.
 - 7.2.2 Good cause for disciplinary sanctions listed in this section (denial, revocation, suspension, annulment, limitation, or modification of certification) shall include, but not be limited to:
 - 7.2.2.1 Evidence that the minimum standards for certification set forth in these rules have not been met.
 - 7.2.2.2 Material misstatement or misrepresentation on the application for certification.
 - 7.2.2.3 Proof of unfitness.
 - 7.2.2.4 Proof of individual's failure to meet, and continue to meet, performance standards at the level certified.
 - 7.2.2.5 Unlawful use, possessing, dispensing, administering, or distributing controlled substances.
 - 7.2.2.6 Conviction of, or a plea of no contest to, unlawful conduct that relates to certification status.
 - 7.2.2.7 Driving an emergency vehicle in a reckless manner, or while under the influence of alcohol or other performance altering drugs.
 - 7.2.2.8 Demonstrating a pattern of alcohol or other substance abuse.
 - 7.2.2.9 Obtaining or attempting to obtain certification or recertification by fraud, misrepresentation, deception, or subterfuge.
 - 7.2.2.10 Materially altering any Division certificate, or using and/or possessing any such altered certificate.
 - 7.2.2.11 Unlawfully discrimination in the provisions of services based upon national origin, race, color, creed, religion, age, physical or mental disability, sexual preference, infectious disease, or economic status.

- 7.2.2.12 Representing qualifications at any level other than the person's current certification level.
 - 7.2.2.13 Failure to pay required fees for certification.
- 7.3 Good cause for disciplinary sanctions listed in this section (denial, revocation, suspension, annulment, limitation, or modification of certification) against the certification held by an instructor or certified proctor shall include, but not be limited to:
 - 7.3.1 Failure to adhere to the policies, procedures, and administrative requirements for delivery, documentation, test administration, and certification as adopted, administered and/or recognized by the Advisory Board and the Division.
 - 7.3.2 Failure to maintain security over written exams, including unauthorized access or reproduction of examination materials.
- 7.4 If the Board finds that grounds exist for the denial, revocation, suspension, annulment, limitation, or modification of certification of any fire service personnel or applicant, action will be taken according to the provisions of the Colorado Administrative Procedure Act, Section 24-4-101, et seq., C.R.S., as amended.
- 7.5 Upon the denial, revocation, suspension, annulment, limitation, or modification of any member of a fire service unit or applicant, the person shall return to the Board all certificates, cards, patches or other identification issued by the Board for said certification and accreditation levels.

SECTION 8 FEES

- 8.1 The following fees shall apply for products and services provided by, or on behalf of the Division:
 - 8.1.1 Application for initial written examination \$35.00
 - 8.1.2 Application for retake written examination \$35.00
 - 8.1.3 Application for Colorado Executive Fire Administrator Certification \$35.00
 - 8.1.4 Application for proctor certification \$35.00
 - 8.1.5 Application for renewal of certification – 5 year \$45.00
 - 8.1.6 Reinstatement/Regression fee for expired certification \$40.00
 - 8.1.7 Application for reciprocity \$40.00
 - 8.1.8 Use of Mobile Training Props \$200.00/Site
- 8.2 All application fees payable to the Division must be made at the time of application and are not refundable.

SECTION 9 INQUIRIES

- 9.1 Questions, clarification, or interpretation of these Rules should be addressed in writing to: Professional Qualifications & Training Section Chief, Colorado Division of Fire Prevention and Control, 690 Kipling St, Suite 2000, Lakewood, CO 80215. Telephone number: (303) 239-4600.

Editor's Notes

History

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